



DRAFT — FOR SARAH'S REVIEW

Data-Handling Policy

OptiMind Educational Strategies — prepared by Ruby Groves, Gemini Lane

Applies to · All OptiMind employees Status · Draft Last updated · Aug 16, 2026

Not legal advice. Whether FERPA, HIPAA, or Maryland student-records law apply — and how — is still an open compliance question on the roadmap, not something settled here. This policy states current practice and known gaps; the compliance determination itself needs an education attorney's read before this is treated as final.

1. What's Held

- Client intake forms and contact information.
- Session notes, curriculum coverage records, and goal-tracker entries.
- Neuropsych and psycho-educational evaluations, where provided.
- IEPs, 504 plans, and other school-provided records.
- Medical and mental-health information disclosed at intake (medications, providers, family history).
- Billing and payment records.

2. Where It Lives

DATA	CURRENT LOCATION
Client files & records	Cloud storage (Drive sync) — confirm exact folder structure once decided
Intake forms	New Client Intake Form (adult); legacy JotForms for other client types until replaced
Agreements	PandaDoc
Billing	QuickBooks, plus a separate billing spreadsheet
Session notes	TBD — notetaking tool not yet selected

Known gap: everything currently lives on cloud sync with no independent, tested backup. An independent backup — confirmed by actually restoring a file — is on the roadmap but hasn't shipped yet.

3. Who Can Access It

- Sarah Ritter — full access to all client records.
- The EF Specialist — access to records for clients on their own caseload. **Confirm whether access should be scoped narrower than that.**
- Bookkeeper/CPA — billing and financial records only, not client session or diagnostic records.
- No other third parties have standing access.

4. How Long It's Kept

TBD — no retention or destruction schedule is set yet. As a starting point for discussion: many practices retain active client records for the duration of service plus several years after discharge, with longer minimums sometimes required for minors' educational or health records under state law. This needs to be confirmed against the applicable Maryland requirement before it's treated as policy.

5. Compliance Status

TBD — whether HIPAA applies to this practice is still an open question on the roadmap. Which student-records obligations apply, and which remain open with an education attorney, will be recorded here once confirmed.

6. Incident Reporting

Any suspected data breach, lost device, or unauthorized access must be reported to Sarah immediately upon discovery, per the Confidentiality & Data-Handling Agreement.

By signing below, I acknowledge that I have read this Data-Handling Policy and agree to comply with it.

Employee signature & date

Sarah Ritter, Founder & date

Open Questions for Sarah

1. Has the HIPAA-applicability question been answered — and if so, what's the determination?
2. Which student-records / special-education record-keeping obligations apply, and which are still open with an education attorney?
3. What's the actual retention period for client records after discharge?
4. What's the target date and tool for the independent, tested backup?
5. Should the specialist's access be scoped narrower than "their own caseload"?

6. Any other third party (payroll provider, insurance broker) that needs defined access?